

SENATE BILL 2685

By Kyle

AN ACT to amend Tennessee Code Annotated, Title 47,
Chapter 18 and Title 53, relative to food and food
ingredients for human consumption.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 53-1-102, is amended by adding the
following as a new subdivision:

() "Chemical ingredient" means:

(A) Acetylated esters of mono- and diglycerides (acetic acid esters);

(B) Anisole;

(C) Azodicarbonamide (ADA);

(D) Butylated hydroxyanisole (BHA);

(E) Butylated hydroxytoluene (BHT);

(F) Bleached flour;

(G) Blue 1 (CAS 3844-45-9);

(H) Blue 2 (CAS 860-22-0);

(I) Bromated flour;

(J) Calcium bromate;

(K) Canthaxanthin;

(L) Certified food colors by the United States food and drug
administration;

(M) Citrus red 2 (CAS 6358-53-8);

(N) Diacetyl;

- (O) Diacetyl tartaric and fatty acid esters of mono- and diglycerides (DATEMs);
- (P) Dimethylamylamine (DMAA);
- (Q) Dioctyl sodium sulfosuccinate (DSS);
- (R) Ficin;
- (S) Green 3 (CAS 2353-45-9);
- (T) Interesterified palm oil;
- (U) Interesterified soybean oil;
- (V) Lactylated fatty acid esters of glycerol and propylene glycol;
- (W) Lye;
- (X) Morpholine;
- (Y) Olestra;
- (Z) Partially hydrogenated oil (PHO);
- (AA) Potassium aluminum sulfate;
- (BB) Potassium bromate;
- (CC) Potassium iodate;
- (DD) Propylene oxide;
- (EE) Propylparaben;
- (FF) Red 3 (CAS 16423-68-0);
- (GG) Red 4 (CAS 4548-53-2);
- (HH) Red 40 (CAS 25956-17-6);
- (II) Sodium aluminum sulfate;
- (JJ) Sodium lauryl sulfate;
- (KK) Sodium stearyl fumarate;
- (LL) Stearyl tartrate;

- (MM) Synthetic trans fatty acid;
- (NN) Thiodipropionic acid;
- (OO) Titanium dioxide;
- (PP) Toluene;
- (QQ) Yellow 5 (CAS 1934-21-0); and
- (RR) Yellow 6 (CAS 2783-94-0);

SECTION 2. Tennessee Code Annotated, Title 53, Chapter 1, Part 1, is amended by adding the following as a new section:

(a) The department shall prohibit the sale of a food product in this state that includes a chemical ingredient, unless a warning label is affixed to the food product disclosing the use of the chemical ingredient, if:

(1) The chemical ingredient is required by the United States food and drug administration (FDA) to be disclosed; and

(2) The food product is intended to be consumed by humans.

(b) The warning label's font size must not be smaller than the smallest font used on other required warning labels and must read: "WARNING: This product contains a chemical ingredient that is not recommended for human consumption by the FDA." The warning label language must be provided on a food product retailer website.

(c) This section does not apply to food products that:

(1) Are not intended for human consumption;

(2) Are for restaurant or retail establishment use;

(3) Are regulated by the United States department of agriculture's food safety and inspection service;

(4) Include a warning label with recommendations from the United States surgeon general; or

(5) Are drugs or dietary supplements.

(d) If a federal law or regulation specifically authorizes, prohibits, or restricts the use of a chemical ingredient, including a determination that the chemical ingredient is safe for human consumption or a requirement for a labeling statement related to ultra-processed or processed foods, this section is preempted and no longer applies to that chemical ingredient.

SECTION 3. This act takes effect January 1, 2027, the public welfare requiring it.